

Annapurna W/O Rathan Naik vs Rathan Naik S/O Laxman on 12 July, 2023

Author: S G Pandit

Bench: S G Pandit

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NC: 2023:KHC-D:7094-DB

MFA No. 102148 of 2014

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 12TH DAY OF JULY, 2023

PRESENT

THE HON'BLE MR JUSTICE S G PANDIT

AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A.PATIL

MISCELLANEOUS FIRST APPEAL NO. 102148 OF 2014 (FC)

BETWEEN:

ANNAPURNA W/O. RATHAN NAIK,
AGE: 42 YEARS, OCC: EMPLOYEE IN LIC OF INDIA,
SHAMBHAVI NILAYA, SECTION NO.61, PLOT NO. 147,
R/O: NAVANAGAR, BAGALKOT,
PRESENTLY WORKING AS HIGHER
GRADE ASSISTANT LIFE INSURANCE
CORPORATION OF INDIA,
BADAMI POST, DIST: BAGALKOT,
PIN : 587 201.

... APPELLANT

(BY SMT. SUNITHA P. KALASOOR, ADVOCATE)

AND:

SHIVAKUMAR
HIREMATH

RATHAN NAIK S/O. LAXMAN,
AGE: MAJOR, OCC: PRAGATI, GRAMEENA BANK,
R/O: SREE LAKSHMIVENKATESHWARA,
NILAYA, 4TH MAIN, NEHARU COLONY,
GANDHI NAGAR, BELLARY.

Digitally signed by
SHIVAKUMAR
HIREMATH
Location: High
Court of Karnataka,

Dharwad

Date: 2023.07.22

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...RESPONDENT

(RESPONDENT SERVED)

THIS MISCELLANEOUS FIRST APPEAL FILED UNDER
SECTION 19(1) OF FAMILY COURT ACT, 1984, PRAYING TO SET

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MFA No. 102148 of 2014

ASIDE THE JUDGMENT AND DECREE DATED 12.02.2014, PASSED
IN MATRIMONIAL CASE NO.87/2013 ON THE FILE OF THE
PRINCIPAL JUDGE, FAMILY COURT AT BELLARY, ALLOWING THE
PETITION FILED UNDER SECTION 13(1) (IA) AND (IB) OF HINDU
MARRIAGE ACT.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY,
VIJAYKUMAR A. PATIL, J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is filed under Section 19(1) of the Family Court Act, 1984 (for short, 'the Act') against the judgment dated 12.02.2014 passed by the Principal Judge, Family Court, Ballari in MC.No.87/2023 by which the petition filed by the respondent-husband seeking dissolution of marriage was allowed and the marriage between the appellant and respondent was dissolved.

2. Brief facts giving raise to filing of this appeal are that, the marriage of the appellant and respondent was solemnized on 13.05.1994. After the marriage, they lived together at Ballari. It is averred that, the appellant- wife subsequently started ill-treating the respondent- husband by picking up quarrels without any valid reason. It is further averred that, the appellant-wife was always NC: 2023:KHC-D:7094-DB insisting the respondent-husband to shift the family to her native place. Since the respondent-husband was having meager income, it was not possible for him to shift his family to the native place of the appellant-wife at Bagalkote. It is also averred that, the appellant-wife is working in LIC of India and in the year 1995 the appellant- wife gave birth to a male child. It is averred that, after delivery the appellant-wife came to the matrimonial house lived for sometime and again returned to her parents house. The respondent-husband filed a petition in M.C.No.49/2000 in the conciliation held between them, the said case ended in compromise on 08.08.2001, thereafter, the appellant and the respondent lived together till 2003. Again in the year 2003, the appellant-wife once again left the house of the respondent-husband. The respondent-husband made all efforts to bring back the appellant-wife to matrimonial home, which went in vain. It is further averred that, the appellant-wife went to the extent to insist the respondent-husband to give divorce instead of returning to her matrimonial home. Hence, the marital NC:

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3. The appellant-wife appeared before the Family Court, but did not file any objection to the petition. The Family Court based on the pleading framed issues and recorded the evidence of parties. The respondent-husband examined himself as PW.1 and got marked three documents as Exs.P.1 to P.3. The appellant-wife has not adduced any evidence. The Family Court vide Judgment dated 12.02.2014 has allowed the petition filed for dissolution of marriage by dissolving the marriage between the parties.

4. Learned counsel Smt. Sunita P. Kalasoor, appearing for the appellant-wife submits that, the respondent-husband was always living with the appellant- husband and by misrepresentation of fact, fraud and NC: 2023:KHC-D:7094-DB taking undue advantage of ill-health of the appellant, the respondent-husband got ex-parte impugned Judgment without the knowledge of appellant. It is submitted that, the trial Court has failed to provide sufficient opportunity to the appellant-wife by adducing evidence and proceeded to pass ex-parte Judgment. It is further submitted that trial Court has failed to appreciate the fact that appellant is represented through her Advocate, however, she could not file the objections, hence, the trial Court ought to have provided an opportunity to the wife to appear and file objection and adduce evidence. The impugned Judgment is against the principles of natural justice. The trial Court has failed to appreciate the fact that out of the wedlock, two children have been born and welfare of the children is important to continue the marital status of the appellant and the respondent as a husband and wife. She seeks to allow the appeal by setting aside the impugned Judgment.

5. The respondent though served, remained absent, hence placed ex-parte.

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6. We have heard learned counsel for the appellant, perused memorandum of appeal and the trial Court records.

7. It will be useful to refer the decision of the Hon'ble Supreme Court in the case of Vidhyadhar vs. Manikrao and another reported in (1999) 3 SCC 573, has held at paragraph No.17 as under:

"17. Where a party to the suit does not appear into the witness box and states his own case on oath and does not offer himself to be cross examined by the other side, a presumption would arise that the case set up by him is not correct as has been held in a series of decisions passed by various High Courts and the Privy Council beginning from the decision in Sardar Gurbakhsh Singh v. Gurdial Singh and Anr. . This was followed by the Lahore High Court in Kirpa Singh v. Ajaipal Singh and Ors. AIR (1930) Lahore 1 and the Bombay High Court in Martand Pandharinath Chaudhari v. Radhabai Krishnarao Deshmukh AIR (1931) Bombay 97. The Madhya Pradesh High Court in Gulla Kharagjit Carpenter v. Narsingh Nandkishore Rawat also followed the

Privy Council decision in Sardar Gurbakhsh Singh's case (supra). The Allahabad High Court in Arjun Singh v. Virender Nath and Anr. held that if a party abstains from entering the witness box, it would give rise to an inference adverse against him. Similarly, a Division Bench of the Punjab & Haryana High Court in Bhagwan Dass v. Bhishan Chand and Ors. , drew a presumption NC: 2023:KHC-D:7094-DB under Section 114 of the Evidence Act against a party who did not enter into the witness box."

8. The Hon'ble Supreme Court in the case of Muddasani Venkata Narsaiah (Dead) Through Legal Representatives vs. Muddasani Sarojana¹, wherein paragraph No.15 reads as under:

"15. Moreover, there was no effective cross- examination made on the plaintiff's witnesses with respect to factum of execution of sale deed, PW.1 and PW-2 have not been cross examined as to factum of execution of sale deed. The cross-examination is a matter of substance not of procedure one is required to put one's own version in cross-examination of opponent. The effect of non cross-examination is that the statement of witness has not been disputed. The effect of not cross-examining the witnesses has been considered by this Court in Bhoju Mandal. v. Debnath Bhagat AIR 1963 SC 1906. This Court repelled a submission on the ground that same was not put either to the witnesses or suggested before the courts below. Party is required to put his version to the witness. If no such questions are put the court would presume that the witness account has been accepted as held in Chuni Lal Dwarka Nath v. Hartford Fire Insurance Co. Ltd. & Anr. AIR 1958 P & H 440."

(Emphasis supplied)

9. The Hon'ble Apex Court in the above decision has held that, the evidence of the other side is not (2016) 12 SCC 288 NC: 2023:KHC-D:7094-DB disputed by way of cross-examining the witness amounts to acceptance of the plea of the other side. Keeping in mind the enunciation of law laid down by the Hon'ble Supreme Court now we deal with the case on hand. There is no dispute with regard to the relationship between the parties and it is also not in dispute that out of wedlock, two children have been born. The respondent-husband has filed a petition seeking for dissolution of marriage on the ground of cruelty and desertion by making specific averments that the appellant has lived together with the respondent at Ballari initially for some days and thereafter the appellant started ill-treating the respondent by picking up quarrel without any valid reasons. It is specifically averred that, the respondent should shift his family to her native place, however, the respondent is having little income and he is not in a position to shift his family to native place of the appellant at Bagalkote. It is also averred that, the appellant is a working woman and after delivering the child she returned to her parents house, hence the respondent has filed M.C.No.49/2000 and it has NC: 2023:KHC-D:7094-DB ended in compromise and thereafter the appellant has joined the respondent. However, the appellant again left the matrimonial home in the year 2003 without any reason and despite making best efforts by the respondent- husband, she could not rejoin the respondent. These allegations are specific which are not denied by the appellant by filing the statement of objection or by adducing proper evidence. The respondent has specifically stated that

on an earlier occasion also the appellant has left the matrimonial home, hence, he was compelled to file M.C.No.49/2000, wherein the appellant has agreed and rejoined the matrimonial home, however, after some time, she left the matrimonial home without any valid reason. These allegations are not controverted by the appellant- wife by filing the statement of objection or by adducing evidence, in the absence of any evidence meeting the specific allegations of cruelty and desertion made by the respondent-husband, this Court is required to draw an adverse inference that the appellant-wife has failed to discharge her marital obligations by causing mental cruelty

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NC: 2023:KHC-D:7094-DB to the respondent and the appellant has left the matrimonial home and started staying separately without any justifiable reason from 2003. These acts of the appellant clearly establishes that the appellant has deserted the respondent-husband with an intention to end the co-habitation permanently. This Court in the absence of any contra evidence on record has no option but to believe the version of the respondent.

10. The Family Court has recorded categorical finding that, the appellant has caused mental cruelty to the respondent-husband and she has deserted the respondent voluntarily for more than eight years, earlier to the filing of this petition and she has withdrawn voluntarily her marital relationship with the respondent. The said finding of the Family Court are based on the evidence on record, the findings recorded are neither perverse nor contrary to the material on record, calling for interference in this appeal.

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11. For the aforementioned reasons, we do not find any merit in this appeal, the same is hereby dismissed.

Sd/-

JUDGE Sd/-

JUDGE SVH